

25STCV29434 25STCV29434

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Case Number: 25STCV29434 Hearing Date: July 27, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 27, 2026 TRIAL DATE: NOT
SET

CASE: Clément Souyri v. Bryan Freedman, et al.

CASE NO.: 25STCV29434

MOTION

FOR ATTORNEY FEES AND COSTS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

MOVING PARTY: Defendants Bryan Freedman and Liner Freedman Taitelman
+ Cooley, LLP

RESPONDING PARTY: Plaintiff Clément Souyri, individually and
as administrator of the estate of Travis Michael Flores

CASE

HISTORY:

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10/08/25: Complaint filed.

TENTATIVE RULING:

Defendants' Motion for Attorney

Fees is GRANTED in part. The Court awards Defendants \$37,496.75 in attorney fees, \$1,479.30 in costs, and \$17,302 in connection with this fees motion, for a total of \$56,278.05.

Moving

Party to give notice.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This action is brought by the estate of Travis Michael Flores against Flores' former lawyer, Bryan Freedman.

In 2021 and 2022, Freedman represented Flores (now deceased) in an idea-submission and copyright case against Justin Baldoni, a well-known director. In that case, Flores claimed he had originated the idea for a film, Five Feet Apart, created and directed by Baldoni. That case settled as a "walk-away" (i.e., without payment by either side). Freedman, Flores' former lawyer, then represented Baldoni in a very high-profile litigation involving Baldoni and movie star Blake Lively.

The Lively/Baldoni litigation garnered worldwide attention. Freedman was asked by the press about the older lawsuit in which he represented a client adverse to Baldoni. Freedman responded by saying:

In the copyright infringement case, I learned what great people Justin and Wayfarer [Baldoni's company] were. [...] I learned that they did absolutely nothing wrong and that there was no liability on their part whatsoever. As a result, the case was resolved without any liability on Justin's or Wayfarer or any other defendant's part. This only further confirmed to me that Justin and Wayfarer are exceedingly honorable and highly ethical.

(Complaint

¶ 19; Exh. B; ("Media Statement").) According to the Complaint and evidence submitted by Flores's estate, this Media Statement (and similar statements by Freedman to the press) brought attention to the Flores's earlier lawsuit,

damaging the reputation of the late Flores and causing the estate itself to incur legal and other fees to deal with the press attention.

The estate

brought the instant action. The Complaint alleges causes of action for breach of contract, breach of fiduciary duty, legal malpractice, invasion of privacy, and defamation.

The

Complaint alleges three general bases for Freedman's liability across the five causes of action. First, the estate alleges that Freedman committed malpractice, breach of contract, and breach of fiduciary duty in the original representation when Flores was Freedman's existing client. For example, the estate alleges that Freedman advised Flores to settle his (allegedly) meritorious case for a walk-away. Second, the estate claims that the Media Statement (and similar statements to the press) constituted a breach of Freedman's duties as an attorney to Flores as a former client. Most significantly, the estate alleges that the Media Statement violated Freedman's duties to his former client because it shared confidences about the representation with the press. Third, the estate claims that Freedman committed torts going beyond his duties as an attorney, specifically that he defamed Flores' character and invaded his privacy by issuing the Media Statement and similar press statements.

Freedman

brought an anti-SLAPP motion. The Court concluded that first, to the extent it sought to impose liability for Freedman's actions when Flores was an existing client, this is a legal malpractice case, to which the anti-SLAPP law does not apply.

Second, to

the extent the malpractice, breach of contract, and breach of fiduciary duty allegations were based on Freedman's breach of duties to Flores as a former client based on actions taken in a subsequent representation (Baldoni), the Court found that the anti-SLAPP law applies to Freedman's Media Statement in connection with his representation of Baldoni (i.e., that imposing liability based on the Media Statement meets the first step of the anti-SLAPP law.) But ruled that the anti-SLAPP law did not apply to other alleged actions. However, because the Media Statement on its face could reasonably be construed to violate the fiduciary and other duties of an attorney to a former client, and

because the statement is not otherwise privileged as Freedman argued, the estate showed that the breach of contract, breach of fiduciary duty, and legal malpractice claims based on the Media Statement have sufficient merit to proceed (i.e., the second step of the anti-SLAPP law is not satisfied).

Third, the

Court ruled that the claims for defamation and invasion of privacy cannot go forward at all. Those claims are entirely based on the Media Statement and similar statements to the press. They are thus subject to the anti-SLAPP law in their entirety. The Court also reasoned that they also lack merit in their entirety. Since Flores is deceased, his estate cannot bring a defamation or invasion of privacy cause of action on Flores's behalf.

Now,

Defendants move for attorney fees in connection with the partial grant of their anti-SLAPP motion.

DISCUSSION:

Request for
Judicial Notice

Plaintiff seeks judicial notice of
three court filings. The request is GRANTED.

Evidentiary
Objections

Defendants' objections are
overruled.

Motion for Attorney
Fees

Defendants move for attorney fees
and costs in the amount of \$56,098.88, which they contend represents 75% of the fees incurred to litigate the Anti-SLAPP motion (reflecting their partial success on that motion), plus \$17,302 in additional fees to prepare this fees motion, the reply, and to attend the hearing, and \$1,479.30 in costs, for a total of \$74,880.18.

Entitlement to Attorney Fees

“[A] prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney’s fees and costs.” (Code Civ. Proc. § 425.16(c).) “A party who partially prevails on an anti-SLAPP motion must generally be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion.” (City of Colton v. Singletary (2012) 206 Cal.App.4th 751, 782.) The relevant test is “whether the defendant obtained a practical benefit.” (Id. at p. 783.) In awarding fees to a partially prevailing party, the Court is to consider “the extent to which the defendant’s litigation posture was advanced by the motion, whether the same factual allegations remain to be litigated, whether discovery and motion practice have been narrowed, and the extent to which future litigation expenses and strategy were impacted by the motion. The fees awarded to a defendant who was only partially successful on an anti-SLAPP motion should be commensurate with the extent to which the motion changed the nature and character of the lawsuit in a practical way. The court should also consider any other applicable relevant factors, such as the experience and abilities of the attorney and the novelty and difficulty of the issues, to adjust the lodestar amount as appropriate.” (Mann v. Quality Old Time Serv., Inc. (2006) 139 Cal. App. 4th 328, 344-45.)

Plaintiff does not dispute that Defendants were the prevailing party. The Court finds that Defendants were the prevailing party and entitled to fees due to achieving a practical benefit. However, Plaintiff argues that Defendants’ figure of 75% of the fees incurred does not comply with the Court ordered appointment. The Court noted in its minute order granting in part the anti-SLAPP motion that the award must be limited only to the success obtained on the motion—e.g., fees and costs incurred regarding briefing on the defamation and invasion of privacy causes of action.

Reasonableness of the Fees

In determining whether the attorneys’ fees requested under Section 425.16 are “reasonable,” the Court “may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and

the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded . . . [,] the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed." (Church of Scientology v. Wollersheim (1996) 42 Cal.App.4th 628, 659, disapproved on other grounds by Equilon Enters. v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 68, fn. 5, quotation marks omitted, emphasis omitted.)

This approach "concentrates on the practical impact of a partially successful motion on the overall litigation[.]" (Id. at p. 347.) To that end, in adjusting the lodestar for overlapping work, the court considers such factors as (1) the extent to which the defendants' litigation posture was advanced by the anti-SLAPP motion and appeal; (2) whether the same factual allegations remain to be litigated; (3) whether discovery and motion practice have been narrowed; (4) the extent to which future litigation expenses and strategy were impacted by the motion; and (5) any other applicable relevant factors, such as the experience and abilities of the attorneys and the novelty and difficulty of the issues. (Id. at p. 345.)

The successful defendant is also entitled to fees incurred in filing the motion for anti-SLAPP fees, also referred to as "fees on fees." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1141 [in anti-SLAPP, Code Civ. Proc., § 425.16 context].)

i.

Reasonableness of
Hourly Rate

The lodestar calculation starts "with a determination of the 'reasonable hourly rate,' i.e., the rate 'prevailing in the community for similar work.'" (Marshall, supra, 54 Cal.App.5th at p. 285 [citing PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.] As a general rule, the "relevant 'community' is that where the court is located." (Id. [quoting Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71.]

The Court finds that the hourly rates sought by Defendants are reasonable based on fee rates in the Los Angeles County area,

the Real Rate Report, and the declarations of counsel supporting those rates. (Mot., Jassy Decl., ¶¶ 5-6, 8, 11 -12; Exh. 4; Excelsior Union High Sch. Dist. of L.A. Cnty. v. Lautrup (1969) 269 Cal.App.2d 434, 448.)

Defendants' counsel seek their hourly rate pursuant to an agreement with Defendants that they would pay a flat fee of \$50,000 for the anti-SLAPP motion, and if the anti-SLAPP motion was successful, counsel could pursue and retain its full hourly rate as a fee enhancement and in turn, counsel agreed to absorb the loss of its billable time if the motion was not successful. Defendants cite to Dowling v. Zimmerman (2001) 85 Cal. App. 4th 1400, 1425 in support of their position.

An award of fees and costs on an anti-SLAPP motion must represent the reasonable market value of the services rendered, and need not follow the actual fees incurred by the prevailing party. In Dowling v. Zimmerman, supra, 85 Cal.App.4th 1400, the prevailing party only incurred only \$1,300.00 in fees on the anti-SLAPP motion, but was awarded \$9,300.00 based on the court's assessment of what was reasonable. (Id. at pp. 1425–26.) Faced with the argument that an anti-SLAPP fee award "should not exceed the amount of attorney fees the defendant actually incurred," the court stated, "We reject those contentions." (Id. at p. 1425.) Thus, the Court finds that Defendants may seek the reasonable market value of their services rendered.

ii.

Reasonableness of the Hours Expended

Defendants' Reply clarifies that the total time expended on the Anti-SLAPP motion was 104.6 hours. (Reply pg. 7; Jassy Suppl. Decl., ¶ 3; Exh. 5.)

In opposition, Plaintiff argues that Defendants failed to properly apportion their time and that the 75% figure is arbitrary. Plaintiff contends Exhibit 2 is built from time that demonstrably went to arguments, evidence, and drafting unrelated to the ground on which the defamation and privacy claims were struck. Plaintiff also contends that the billing records are too heavily redacted to permit review.

The Court finds that a 50% reduction in total hours is appropriate. This is because although Defendants attacked all five causes of action, they were successful in striking only two. The Court rejected Defendants' defenses in step two of the analysis on the three causes of action that survived and found Plaintiffs showed their claims had minimal merit. Further, as to the two causes of action Defendants prevailed on, the second step of the analysis appeared to be an easy win based on black letter law. Thus, the bulk of the work that was successful was spent on step one of the analysis in connection with the Media Statements arising from protected speech. The Court also rejected the other alleged acts that Defendants claimed were protected speech.

Thus, the fee award is calculated as follows:

Total
hours of 104.6

Mr. Payne ($56.3 \times \$650 = \$36,595 - 50\% = \$18,297.50$)

Mr. Jassy ($48.3 \times \$795 = \$38,398.50 - 50\% = \$19,199.25$)

Total = \$37,496.75

Costs

Defendants seek costs in the amount of \$1,479.30.

Plaintiff

challenges \$1,000 of the costs, arguing that there is an unexplained deposition services invoice, but no deposition was taken in relation to the anti-SLAPP motion. In Reply, Defendant clarifies that this is for the Court Reporter for the hearing on the anti-SLAPP motion. Plaintiff had surmised that the fee be for the Court Reporter and did not challenge it.

Thus, the Court awards costs in the amount of \$1,479.30.

Fees in

Connection with the Fees Motion

Plaintiff challenged certain fees in connection with this motion as duplicative. In Reply, Defendants have stated this was an inadvertent error and corrected the amount sought.

Thus, the Court awards \$12,302 in fees to prepare this fees motion, and \$5,000 for the reply, and to attend the hearing for a total of \$17,302.

CONCLUSION:

Accordingly, Defendants' Motion for Attorney Fees is GRANTED in part. The Court awards Defendants \$37,496.75 in attorney fees, \$1,479.30 in costs, and \$17,302 in connection with this fees motion, for a total of \$56,278.05.

Moving
Party to give notice.

IT IS SO ORDERED.

Dated: July 27, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.